

Consent (91.0%), Contract (63.4%), Data Controller (99.3%), Data Subject (96.7%), Legal Basis (82.2%), Organisational Measure (85.9%), Personal Data (99.8%), Processing (99.0%), Required Purpose (61.5%), Retention (70.6%), Right (81.3%), Technical Measure (97.9%), Third Party (90.0%):

Terms of Use Home Games News About Contact Home Games News about Contact Main / Privacy Policy Privacy Policy Effective August 23, 2023 This Privacy Policy (or Policy) explains how Smokoko (we in this Policy) uses, collects or otherwise processes the personal data of the end users (you in this Policy) in our Services.

Personal Data (98.8%), Processing (98.4%), Required Purpose (96.9%), Right (96.7%):

This policy also explains what rights you have related to our processing of your personal data.

Processing (95.7%), Required Purpose (90.9%), Retention (60.5%), Right (65.0%):

In this policy, the term Services refers to our games, websites, and any other services offered by us, unless a separate notice is supplied with a particular service.

Consent (87.5%), Organisational Measure (66.8%), Personal Data (96.3%):

The term Personal Data refers to any data that relates to you as an identifiable individual.

Consent (98.0%), Third Party (98.8%):

Please note that some parts of our Services may link to properties controlled by third parties.

Organisational Measure (98.9%), Personal Data (62.6%):

If we make any material changes, we will notify you by posting a notice in the Services prior to the change becoming effective.

Data Controller (70.9%), Processing (99.5%):

DATA CONTROLLER In this policy, the term Data Controller means an entity that decides how and why personal data is processed.

Data Controller (64.5%):

The data controller for our Services is Smokoko Ltd, address Pencho Slaveikov Blvd 19A, 1606 Sofia, Bulgaria.

Consent (92.5%), Data Source (66.0%), Processing (99.5%), Recipient (71.9%), Third Party (82.6%):

With your consent, some personal data may be shared with our partners that we work with.

Personal Data (88.1%):

HOW TO CONTACT US If you have questions about data protection or if you have any requests for resolving issues with your personal data, we encourage you to primarily contact us through our games so we can reply to you more quickly.

Data Protection Officer (84.6%):

You can also reach us and our designated Data Protection Officer by email at .

Data Controller (91.4%), Required Purpose (93.5%):

WHY WE PROCESS YOUR DATA We use your personal data for various purposes in connection with your use of the Services.

Contract (75.0%), Personal Data (93.5%), Required Purpose (73.3%), Retention (60.5%):

This policy includes information pertaining to your rights and is a supplement to our Terms of Service, which govern your use of the Services.

Contract (74.8%):

Performance of a contract.

Not Required Purpose (62.5%), Processing (86.7%), Required Purpose (98.8%):

In order to provide you with the Services we process the personal data necessary to: - create accounts and allow you to play our games and use our Services; - operate the Services; - verify and confirm payments; - provide and deliver products and services you request; and - send you communication related to the Services.

Non-Personal Data (83.8%), Personal Data (69.8%), Required Purpose (96.4%):

In order to make our Services more enjoyable we process your personal data in order to: - update and develop player profiles; - develop and improve the Services and player experience; - manage our relationship with you; - provide social features as part of the Services; - customize your Service experience; - respond to your comments and questions and provide player support; - provide you offers in the Services related to other Smokoko products and services; - send you related information, such as updates, security alerts, and support messages; and - enable you to communicate with other players.

Automated Decision Making (90.5%), Processing (99.1%), Required Purpose (92.5%):

In order to keep the Services safe and fair we process your personal data to: - analyze and monitor the use of the Services and their social features; - moderate chats either automatically or manually; - take action against fraudulent or misbehaving players; and - prevent harassment and cyber-bullying.

Personal Data (83.5%), Required Purpose (93.3%), Third Party (89.6%):

In order to promote and monetize our Services to you, we may process your personal data to: - show non-targeted ads to you in our Services, either from us or our advertising partners; - keep track of your activity in our Services to learn about your interests; - keep track of installations and installation sources of our games; - measure, analyze, and improve the effectiveness of our advertising both in and outside of the Services; and - send you communications about offers,

rewards, events, or other news related to the Services.

Required Purpose (78.3%):

With your separate consent, we may process your personal data in order to: - share it with our advertising partners for their independent use.

Processing (87.3%), Required Purpose (95.7%):

These uses may include creating a personalized ad profile about you, selecting personalized ads for you, measuring ad performance, generating audience insights, and other uses: - to send you newsletters or other similar communication if you have subscribed to them; and - any other purposes as described in the relevant consent screen in the applicable Services.

Non-Personal Data (66.3%), Processing (88.1%):

THE PERSONAL DATA WE PROCESS Your personal data is being processed and collected throughout your use of the Services, such as technical data related to your device or internet connection.

Personal Data (92.7%), Processing (84.8%):

Some personal data is processed automatically whereas some require your input, such as providing a user name to be used in the Services.

Consent (88.5%), Data Source (88.8%), Non-Personal Data (93.2%), Personal Data (96.6%), Technical Measure (96.5%):

We process data you provide in the Services, such as: - player nickname entered in-game; - in-game chat messages; and - other data you choose to give us (such as your email address and information in player support tickets) We process personal data automatically as part of delivering Services, such as: - your IP address and mobile device identifiers (such as your device ID, advertising ID, MAC address and IMEI); - data about your device, such as device name and operating system, browser type and language; - data we collect with cookies and similar technologies (see more below); - coarse location data (country or city-specific); and - we also may create a Smokoko and/or game-specific ID for you when you use the Services.

Personal Data (84.1%), Processing (75.8%), Required Purpose (97.2%), Third Party (83.1%):

We process personal collected or enriched with data from our partners: - data we receive if you link a third-party tool with the Services (such as login using your Facebook or Google account); - demographic data (such as to determine the coarse location of your IP address); - data to fight fraud (such as refund abuse in games); - data from platforms that the games run on (such as to verify payment); and - data for advertising and analytics purposes, so we can keep improving our games.

Consent (72.3%), Processing (99.0%), Third Party (64.2%):

WHO CAN ACCESS YOUR DATA Apart from Smokoko, your personal data can be accessed by others in the following situations: Other players and users Social features are a core component of our games.

Personal Data (73.0%):

Other players and users may, for example, see your profile data, in-game activities and read the messages you have posted.

Data Controller (65.5%), Organisational Measure (60.5%), PAD (100.0%), Personal Data (73.4%), Required Purpose (91.3%):

These partners process your data only at and according to Smokoko's instructions in order to provide the Service, such as hosting, player support, advertising, analytics and fraud prevention.

Third Party (95.8%):

Smokoko's development partners Smokoko may publish games developed or maintained by other game development companies.

Third Party (66.2%):

These development partners may process your personal data for the purposes described herein and where applicable, working as joint controllers of the processed data together with Smokoko.

Third Party (67.0%):

These partners are listed at Smokoko Partners.

Authority (95.6%), Legal Basis (97.5%), Processing (78.7%), Required Purpose (85.8%), Third Party (68.0%):

Other companies and public authorities In order to combat fraud and illegal activity, we may exchange data with other companies and organizations and provide it to public authorities in response to lawful requests.

Legal Basis (95.0%), Processing (97.1%):

We may also disclose your data based on your consent, to comply with the law or to protect the rights, property or safety of us, our players or others.

Processing (93.6%), Scale Non-EU (82.1%):

International data transfers Our Services are global by nature and your data can therefore be transferred to anywhere in the world.

Legal Basis (89.5%), Organisational Measure (82.2%):

Because different countries may have different data protection laws than your own country, we take steps to ensure adequate safeguards are in place to protect your data as explained in this Privacy Policy.

Consent (83.5%), Contract (78.2%):

Adequate safeguards to ensure your rights include utilizing and enforcing the Standard Contractual Clauses approved by the EU Commission.

Required Purpose (85.9%), Retention (94.4%):

DATA RETENTION We will keep your personal data for as long as necessary to achieve the purposes for which it was collected, including to provide you with the Services or to comply with any legal, accounting, or reporting requirements.

Processing (99.2%), Retention (74.2%):

After the applicable retention period, we will either delete or de-identify your personal data or, if neither deletion or de-identification is possible (for example, due to data being stored on a backup server), isolate your data from further processing until deletion or de-identification is possible.

Non-Personal Data (89.2%):

We may continue to use any data that is not identifiable to you (for example, aggregated data).

Organisational Measure (84.7%), Required Purpose (85.2%):

HOW WE PROTECT YOUR DATA In order to help ensure a secure and safe player experience, we are continuously developing and implementing administrative, technical and physical security measures to protect your data from unauthorized access or against loss, misuse or alteration.

Organisational Measure (84.6%):

All data security measures are adopted in order to provide a level of security appropriate for the degree of risk involved.

Organisational Measure (68.6%):

These measures are designed to protect your data against accidental or unlawful destruction, loss, or alteration as well as unauthorized disclosure or access.

Organisational Measure (93.5%):

The specific measures typically include encryption in transit, pseudonymization of identifying data where feasible, controls to limit access to services or systems that contain personal data, and maintaining procedures to handle any suspected security incidents.

Art. 15 Right to access by the data subject (72.2%), Personal Data (99.4%):

YOUR RIGHTS AND OPTIONS Your rights regarding your personal data You have the right to a copy of your personal information to be supplied to you in an electronic format upon request.

Art. 16 Right to rectification (74.0%), Art. 18 Right to restriction of processing (83.5%):

You also have the right to correct your data, have your data deleted, object to how we use or share your data, and the right to restrict how we use or share your data.

Authority (70.0%), Scale EU (73.2%):

If you have an unresolved privacy or data use concern that we have not addressed satisfactorily, please contact your local data protection authority within the European Economic Area for unresolved complaints.

Consent (97.5%), Third Party (78.0%):

Opt-out of targeted advertising You can always opt-out of directed advertising in our games by checking the privacy settings of your device or by using the applicable opt-out function provided by Smokoko s Partners.

Technical Measure (65.3%):

COOKIES AND SIMILAR TECHNOLOGIES Nearly all websites today use cookies or similar technologies (such as local shared objects or web beacons).

Technical Measure (94.9%), Third Party (97.7%):

Cookies can be set by either the website you visit or a third party involved in providing content, functionality, or services such as analytics or advertising for the website.

Required Purpose (97.3%):

Cookies are typically used to identify or remember your device, for example, to enable functionality, facilitate audience measurement, improve performance, or remember your online shopping cart contents.

Consent (80.0%):

When you visit our websites you may be prompted to make a choice regarding cookies.

Required Purpose (69.5%):

Some cookies may be strictly necessary for the operation of the websites, whereas some may be optional.

Consent (61.9%):

All cookies will be used and stored on your device independent of your choices regarding other types of cookies.

Organisational Measure (97.3%):

You can also control the use of cookies using your browser or device settings for example by disabling some or all cookies or configuring your browser or device to notify you when cookies are being set.

Organisational Measure (87.3%):

If we discover that you are a minor or do not meet another age threshold we have applied we may take steps to limit, suspend, or terminate your access to the Services where we believe that to be

necessary due to applicable regulatory or platform requirements or to provide you with an appropriate experience.

Required Purpose (72.5%):

If your access to the Services is not suspended or terminated, we alter or remove access to some parts of the Services in order to comply with applicable laws, regulations, and platform policies.

Consent (89.6%):

By downloading, installing, accessing or using any part of the Services you agree to these Terms and agree to be bound by them.

Legal Basis (82.5%), Right (69.1%), Scale Non-EU (86.3%):

For United States and Canadian residents, these Terms contain a binding arbitration clause in Section 12 and a class-action waiver that affects your rights regarding how to resolve disputes.

Consent (89.3%):

If you are between the ages of 13 and 17, or a minor according to laws applicable to you, you represent that your legal guardian or legal representative has reviewed and agreed to these Terms and has given you permission to access and use the Services.

Data Subject (82.6%):

Your continued use of the Services after the effective date will be subject to the updated policy.

Not Required Purpose (63.5%), Organisational Measure (76.0%):

You shall not sell, rent or give away your access to the Services, create Services accounts by using false identities or information, or on behalf of someone other than yourself.

Processing (98.8%), Required Purpose (75.8%), Technical Measure (97.2%):

You agree that you will not, under any circumstances: - use the Services for fraudulent or abusive purposes (including, without limitation, by using the Services to impersonate any person or entity, or otherwise misrepresent Smokoko's affiliation with any person, entity or the Services); - disguise, anonymize or hide your IP address or the source of any material or content that you upload into the Services; - interfere with or disrupt the Services, servers or networks that provide the Services; - attempt to decompile, reverse engineer, disassemble or hack any of the Services, or to defeat or overcome any of the encryption technologies or security measures or data transmitted, processed or stored by Smokoko ; - post any information that is abusive, threatening, obscene, defamatory, libelous, or racially, sexually, religiously, or otherwise objectionable or offensive or engage in ongoing toxic behavior, such as by repeatedly posting information on an unsolicited basis; - post any information that contains nudity, excessive violence, or offensive subject matter or that contains a link to such content; - attempt to, or harass, abuse, or harm, or advocate or incite harassment,

abuse, or harm of another person, group, including Smokoko's employees, including Smokoko's customer service representatives; - solicit or attempt to solicit login information or any other login credentials or personal information from other users of the Services; - harvest, scrape, collect or post any information about or regarding other people that use the Services, including, but not limited to any personal data or information (including but not limited to pixel tags cookies, graphics interchange formats (gifs) or similar items a.k.a spyware or pcms (passive collection mechanisms); - disrupt the normal flow of a game or otherwise act in a manner that is likely to negatively affect other players ability to compete fairly when playing the games; - institute, assist, or become involved in any type of attack, including without limitation distribution of a virus, denial of service attacks upon the Services, or other attempts to disrupt the Services or any other persons use or enjoyment of the Services; - disobey any requirements or regulations of any network connected to the Services; - circumvent technological measures designed to control access to, or elements of, the Services; or - do anything else that Smokoko deems not to be within the spirit of fair play or intent of the Services.

Processing (69.4%):

Please note that we may from time to time update this policy by posting a new version on smokoko.com.

Right (77.4%):

Smokoko reserves the right to determine what conduct it considers to be in violation of these Terms or other rules of the Services, or otherwise outside the intent or spirit of these Terms of Service or the Service itself.

Right (64.1%):

Smokoko reserves the right to take action as a result, which may include terminating your access to the Services in whole or in part.

Processing (63.6%):

WITHOUT LIMITING OUR OTHER REMEDIES, Smokoko MAY LIMIT, SUSPEND OR TERMINATE THE SERVICES AND PORTIONS THEREOF, PROHIBIT ACCESS TO SERVICES GAMES AND SITES, AND THEIR CONTENT, SERVICES AND TOOLS, DELAY OR REMOVE HOSTED CONTENT, AND TAKE TECHNICAL AND LEGAL STEPS TO PREVENT USERS FROM ACCESSING THE SERVICES IF Smokoko BELIEVES THAT THE USERS ARE CREATING RISK OR POSSIBLE LEGAL LIABILITIES, INFRINGING THE INTELLECTUAL PROPERTY RIGHTS OF THIRD PARTIES, OR ACTING INCONSISTENTLY WITH THE LETTER OR SPIRIT OF THESE TERMS OR OTHER POLICIES.

Third Party (96.0%):

Use of any websites or services operated by third parties, third-party services and/or content in third-party services shall be, in addition to these Terms, subject to the relevant third-party service providers terms and conditions applicable to use of such third-party services or the applicable license(s) under which any such content is made available.

Personal Data (89.7%):

Smokoko reserves the right to remove or reclaim any usernames at any time and for any reason, including but not limited to claims by a third party that a username violates the third party's rights.

Data Controller (95.5%), Legal Basis (88.5%), Non-Personal Data (61.6%), Personal Data (75.1%), Processing (98.9%), Right (81.8%):

Intellectual Property Rights All rights, title and interest in and to the Services (including without limitation any games, titles, computer code, themes, objects, characters, names, dialogue, catchphrases, concepts, artwork, animations, sounds, musical compositions, audio-visual effects, moral rights, documentation, in-game chat transcripts, recording of games played using Smokoko's game clients and Smokoko's game clients and server software) (Smokoko Property) are owned by or licensed to Smokoko, subject to copyright and other intellectual property rights under Finnish and foreign laws and international conventions.

Right (77.0%):

Smokoko reserves all rights, including without limitation, all intellectual property rights or other proprietary rights, in connection with its games and the Service.

Processing (91.7%):

Virtual Items Smokoko owns, has licensed, or otherwise has rights to use all of the content that appears in the Services.

Non-Personal Data (65.3%), Personal Data (94.6%):

User Content User Content means any communications, images, sounds, and all the material, data, and information that you upload or transmit to the Services, or that other users upload or transmit, including without limitation, any chat text.

Processing (98.5%), Technical Measure (89.0%):

By transmitting or submitting any User Content while using the Services, you affirm, represent and warrant that such transmission or submission is (a) accurate and not confidential or misleading; (b) not in violation of any laws, contractual restrictions or other third party rights, and that you have permission from any third party whose personal information or intellectual property is comprised in the User Content; (c) free of viruses, adware, spyware, worms or other malicious code; and (d) you acknowledge and agree that any of your personal information within such content will at all times be

processed by Smokoko in accordance with its Privacy Policy.

Processing (81.0%):

Termination of your account can include disabling your access to the Services or any part thereof including any content you submitted or others submitted.

Organisational Measure (66.1%):

By using the Services, you may be exposed to User Content that is offensive, indecent or otherwise not in line with your expectations.

Organisational Measure (63.0%):

You bear all risks associated with the use of any User Content available in connection with the Services.

Personal Data (62.3%):

You acknowledge and agree that you have no expectation of privacy concerning the transmission of any User Content, including without limitation chat text or voice communications.

Organisational Measure (66.8%):

Smokoko reserves the right in its sole discretion to review, monitor, prohibit, edit, delete, disable access to or otherwise make unavailable any User Content (including without limitation your User Content) without notice for any reason or for no reason at any time.

Consent (64.4%):

Smokoko has the right, but not the obligation, in its sole discretion to edit, refuse to post or remove any User Content.

Right (68.8%):

You also hereby grant to Smokoko the right to authorize others to exercise any of the rights granted to Smokoko under these Terms.

Right (63.0%):

You further hereby grant to Smokoko the unconditional, irrevocable right to use and exploit your name, likeness and any other information or material included in any User Content and in connection with any User Content, without any obligation to you.

Legal Basis (64.7%):

Except as prohibited by law, you waive any rights of attribution and/or any moral rights you may have in your User Content, regardless of whether your User Content is altered or changed in any manner.

Right (64.6%):

Smokoko has no obligation to monitor or enforce your intellectual property rights in or to your User

Content.

Third Party (68.9%):

If you have a dispute with one or more users, you release Smokoko (and its officers, directors, agents, affiliates, parent companies, subsidiaries, joint ventures and employees) from claims, demands and damages (actual and consequential) of every kind and nature, known and unknown, arising out of or in any way connected with such disputes.

Processing (89.6%):

All such material must be uploaded without editing them in a way that misrepresents the Services or any games included in the Services.

Organisational Measure (81.9%):

If certain personal data is processed based on consent given by you, such consent can also be withdrawn by you at any time, for example in the applicable games settings.

Organisational Measure (92.6%):

Smokoko may manage, regulate, control, modify or eliminate Virtual Items at any time, with or without notice.

Third Party (84.5%):

You shall not sell, purchase, redeem or otherwise transfer Virtual Items to any person or entity or attempt any of the aforesaid, including but not limited to Smokoko, another user or any third party.

Organisational Measure (85.3%):

Payment of Fees You agree to pay all fees and applicable taxes incurred by you or anyone using an account registered to you.

Organisational Measure (80.7%):

Smokoko may revise the pricing for the goods and services offered through the Services at any time.

Organisational Measure (70.7%):

You acknowledge and agree that Smokoko may update the Services, with or without notifying you.

Retention (91.5%):

The parts of the Services being beta tested may be nonfunctional on some devices regardless of their listed hardware or software requirements or specifications; - any in-app purchases, items, equipment, experience points, in-game currency and other such content may be periodically reset by Smokoko during the course of the beta tests.

Processing (85.6%):

Smokoko offers no refunds for any such lost content; - any feedback or idea submitted by you to

Smokoko regarding the beta-tested parts of the Services may be utilized by Smokoko without any compensation to you.

Organisational Measure (75.1%):

Smokoko shall take appropriate measures to prevent unauthorized access to, improper use of and the reasonable accuracy of your personal data submitted to Smokoko via the Services.

Organisational Measure (63.7%), Technical Measure (71.7%):

We use various technologies, including, in certain instances, encryption, to ensure high-security standards.

Scale Non-EU (78.3%):

Sections 12.1 to 12.6 only apply to residents of the United States or Canada.

Retention (76.6%):

12.1 Informal Dispute Resolution You must try to informally resolve any dispute directly with Smokoko for at least thirty days before starting arbitration.

Legal Basis (74.4%):

AAAs rules and procedures will be used for the arbitration, including the Consumer Arbitration Rules.

Legal Basis (90.8%):

Each side will pay their own attorneys fees and costs unless the claims allow for the prevailing party to recover attorneys fees and costs, in which case the arbitrator may award them under the applicable law.

Third Party (69.7%):

If either party unsuccessfully challenges the validity of the arbitrators decision or award through a subsequent court case, the unsuccessful party shall pay the opposing partys costs and attorneys fees associated with the challenge.

Scale Non-EU (83.5%):

The arbitration will take place either in San Francisco, California, USA or in the county or province where you reside.

Personal Data (60.3%):

above will not apply in the following disputes: - Claims about Smokoko s intellectual property, such as claims to enforce, protect, or concern the validity of Smokoko s copyrights, trademarks, trade dress, domain names, patents, trade secrets, or any other intellectual property rights.

Authority (77.1%), Legal Basis (94.5%):

- Claims that are not subject to the arbitration agreement as a matter of law and are not preempted

by federal law that would allow for an agreement to arbitration.

Authority (63.0%), Scale Non-EU (72.6%):

Any dispute not subject to arbitration under these exceptions shall be resolved by a federal or state court located in San Francisco, California.

Consent (68.6%):

Opt-Out of Arbitration Agreement and No Class Action Provisions You can choose to opt out of and not be bound by the Arbitration Agreement and No Class Action provisions above (Sections 12.1.

Contract (73.1%):

No Class Actions You and Smokoko agree that we can only bring claims against each other on an individual basis.

Scale Non-EU (88.2%):

If you live in the United States or Canada, please read these Terms carefully.

Legal Basis (89.4%):

Applicable Law If you are a resident of the United States or Canada: (1) the United States Federal Arbitration Act (including its procedural provisions) governs the interpretation and enforcement of the agreement to arbitrate and no class actions provisions of Section 12, and (2) any dispute arising out of or related to these Terms, the Smokoko Privacy Policy, or the Services shall be governed in all respects by the laws of the State of California, USA without regard to conflict of law provisions.

Scale Non-EU (86.7%):

If you are a resident outside of the United States and Canada, you agree that any claim or dispute arising out of or related to these Terms, the Smokoko Privacy Policy, or the Services shall be governed by the laws of Bulgaria without regard to conflict of law provisions.

Scale EU (87.7%):

If you are a resident of the European Union, you may have the right to bring your claim or dispute to an Online Dispute Resolution body.

Authority (70.1%):

Severability You and Smokoko agree that if any portion of these Terms, Smokoko's Privacy Policy or any supplemental terms are found illegal or unenforceable, in whole or in part by any court of competent jurisdiction, such provision shall, as to such jurisdiction, be ineffective solely to the extent of such determination of invalidity or unenforceability without affecting the validity or enforceability thereof in any other manner or jurisdiction and without affecting the remaining provisions of the terms, which shall continue to be in full force and effect.

Consent (77.5%):

Assignment Smokoko may assign or delegate these Terms and/or the Smokoko Privacy Policy, in whole or in part, to any person or entity at any time with or without your consent.

Legal Basis (90.4%), Personal Data (99.4%), Scale Non-EU (67.2%):

Region-specific terms Effective January 1, 2020 applying to California residents: California Consumer Privacy Act requires that Smokoko maintains a separate web page that allows you to opt out of the sale of your personal information.

Organisational Measure (78.8%):

Notices We may notify you via the Services or any other communications means to contact information you provide to us.

Data Protection Officer (83.0%):

Attn: Legal, Pencho Slaveikov Blvd 19A, 1606 Sofia, Bulgaria.

Legal Basis (75.7%):

You irrevocably waive all rights to seek injunctive or other equitable relief, or to enjoin or restrain the operation of the Services, exploitation of any advertising or other materials issued in connection therewith, or exploitation of the Services or any content or other material used or displayed through the Services and agree to limit your claims to claims for monetary damages, limited by Section 11 (if any).